

		lawsuit because I wanted to harass the District, punish it through the litigation process, cause it to incur unnecessary attorney’s fees, or force it to incur unnecessary litigation expenses.” (Decl. of Steinhardt, ¶¶ 12, 13). In support of the District’s contention that this action was not brought in good faith, the District argues that Plaintiff took the position that the tournament was a “field trip”/ “excursion” on two prior occasions during litigation, yet took the opposition position in her Opposition to the motion for summary judgment. First, the District notes Plaintiff’s complaint at paragraph 41, wherein she alleges: “Defendant and its employees have a duty to Avery Steinhardt to ensure she is kept safe at school and during school sponsored excursions.” Next, Defendant cites to Plaintiff’s opposition to Defendant’s motion for leave to amend, at Pg. 11:24-27, wherein she states: “Plaintiff’s causes of action are openly and obviously derived from the events that took place during a school sponsored field trip at the end of 2022. There is no case to be made for the District having recently discovered this field trip. It is a material, essential, and central fact to the case.” (See ROA 129). In response, Plaintiff argues that she opposed the notion that the tournament was a “field trip” for purposes of the immunity statute and never conceded that the tournament was subject to immunity when referring to the tournament as a “field trip” or “excursion”. Plaintiff declares: “I understood that the District later raised a defense based on the fact that some of the misconduct occurred during a field trip. I never understood that defense to mean that my entire case necessarily lacked merit or that the District could not be held responsible for any of its conduct concerning Mr. Lutz.” (Decl. of Steinhardt, ¶ 10). She also declares: “I also never intended, by acknowledging that the San Diego basketball tournament was likely a field trip, to concede that the District could not be held responsible for what happened to me. I understood those to be different issues.” (Decl. Of Steinhardt, ¶ 11). The court finds that Plaintiff did not concede the issue of immunity. First, as mentioned above, not all the alleged conduct was subject to the immunity statute. Second, as the court found in <i>Doe, supra</i>, and the similar cases cited by both parties, the determination of whether an off-campus event falls within the immunity statute requires an analysis of various factors, and goes beyond one’s reference to the term “field trip” or “excursion.” Accordingly, the court finds that Plaintiff brought and maintained the action in good faith, and the motion is denied. Defendant CUSD shall give notice.
5	Bren vs. Rebeil	Plaintiffs Angela Bren and Cary Bren’s motion for leave to amend to file a second amended complaint is DENIED without prejudice. Plaintiffs seek leave to amend to file a second amended complaint that adds allegations that Defendants added an illegal fifth floor basement to their property to the already existing causes of action, which is against the CC&Rs. Plaintiffs do not seek to allege additional causes of action. Defendants oppose, arguing that Plaintiffs fail to offer a factual basis for the new allegations, that the claims are time-barred, and that granting leave to amend would severely prejudice Defendants as they no longer live at the property and given the expanding costs of discovery.